

26IWUD00696 26IWUD00696

County: los-angeles

Division: Civil Law and Motion

Department: 8

Hearing date: 2026-07-27

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Tentative:

The court denies the motion to set aside and vacate the dismissal of this action. The Plaintiff states she "mistakenly dismissed the case without realizing or fully understanding the consequences of such an action." But at the time the Plaintiff dismissed the action she was represented by counsel, and the Plaintiff does not explain whether and what discussions she and her counsel had about her request to vacate the action. Those omissions undermine her contentions that she did not understand the consequences of her actions and that her request to dismiss the action is excusable under Code of Civil Procedure section 473, subdivision (b). Based on the Plaintiff's declaration, which provides no explanation at all for the "mistakenly filed" request for dismissal, the court finds the Plaintiff has not shown "mistake, inadvertence, surprise, or excusable neglect" under section 473, subdivision (b).

The court notes the Plaintiff claims that vacating the dismissal would not cause the Defendant prejudice because he "already has a default judgment against him." The Defendant did answer the complaint, however, and a default was entered only against unnamed occupants.